

that it has no responsive documents to produce.

Conclusion:

The Plaintiff's motions to compel further responses to interrogatories and document production is denied except for the few items specified above, for which Defendant should respond within 30 days of service of notice of entry of this order. In addition to producing Plaintiff's complete personnel file, pay records, and reimbursements forms, Defendant searched almost 100 terms within its files and emails in order to capture all responsive documents in response to Plaintiff's requests. The court finds Defendant's efforts to respond to Plaintiff's discovery requests have been diligent, thorough and comprehensive.

Plaintiff improperly moved to compel answers to interrogatories that it failed to meet and confer about with Defendant. Defendant has acted with substantial justification and produced voluminous amounts of responsive and Bates stamped, identified documents. In addition, Defendant demonstrated good faith even providing Plaintiff with significant information pre-litigation. Plaintiff's request for sanctions is denied.

16. 9:01 AM CASE NUMBER: C24-02962
CASE NAME: FRANK GALLAGHER VS. SIMON DE GIULI BOTTA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS**
FILED BY: GALLAGHER, FRANK
TENTATIVE RULING:

See Line 15.

17. 9:01 AM CASE NUMBER: C23-01080
CASE NAME: DANIELLE DEMOTTO VS. WALNUT CREEK SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY SANCTIONS FOR FAILURE TO COMPLY WITH THE COURT'S DISCOVERY ORDER**
FILED BY: WALNUT CREEK SCHOOL DISTRICT
TENTATIVE RULING:

On November 5, 2025, Defendant Walnut Creek School District filed this motion for an order compelling Plaintiff DANIELLE Demotto to provide responses to written discovery without objections, pursuant to CCP §2030.290 and 2031.300.

Defendant seeks responses to written discovery: Form Interrogatories (General and Employment), Set One, Request for Production of Documents, Set One, Special Interrogatories, Set One, and Request for Admissions, Set One. Defendant further moves for sanctions in the amount of \$6,318. In addition to monetary sanctions, Defendant seeks contempt sanctions.

This motion was set for hearing February 20, 2026.